

ACT No. VII OF 1857.

PASSED BY THE LEGISLATIVE COUNCIL OF INDIA.

(Received the assent of the Governor General on the 1st May 1857.)

AN ACT for the more extensive employment of Uncovenanted Agency in the Revenue and Judicial Departments in the Presidency of Fort Saint George.

WHEREAS the exigencies of the Public Service require the more extended employment of Uncovenanted Officers in the Revenue and Judicial Departments in the Presidency of Fort Saint George: It is hereby enacted as follows:—

Governor in Council may appoint Uncovenanted Deputy Collectors and Deputy Magistrates.
I. The Governor of Fort Saint George in Council may appoint, in any Zillah or District within the said Presidency, one or more Uncovenanted Deputy Collectors and Deputy Magistrates with the powers hereinafter mentioned.

Oath or declaration in writing to be made by the Officers so appointed.
II. Every person appointed a Deputy Collector or Deputy Magistrate under this Act shall, before entering upon the duties of his Office, make and subscribe an oath or declaration in writing to the same effect as the oath prescribed by law for Assistant Collectors and Assistant Magistrates respectively.

Duties and powers of a Deputy Collector.
III. A Deputy Collector appointed under this Act may, within the District to which he is appointed, perform such of the duties and exercise such of the powers of a Covenanted Assistant Collector as shall be assigned to him from time to time by the Collector of such District; and shall be subject to the same control in all respects as a Covenanted Assistant Collector is subject to.

IV. A Deputy

ACT No. VII of 1857.

IV. A Deputy Magistrate appointed under this Act may, within the District to which he is appointed, perform such of the duties and powers of a Deputy Magistrate. duties and exercise such of the powers of a Covenanted Assistant Magistrate as shall be assigned to him from time to time by the Magistrate of such District ; and the decisions and orders of such Deputy Magistrate shall be subject to the same rules, as respects appeals, as are or may be provided in the case of the orders and decisions of Covenanted Assistant Magistrates.

V. Nothing in this Act contained shall be held to disqualify any Uncovenanted Officer appointed under this Act from holding at the same time the offices of Deputy Collector and Deputy Magistrate.

Nothing in the Act to disqualify one Officer from holding both offices.

VI. A Deputy Collector or Deputy Magistrate appointed under this Act shall not be dismissed from Office without the sanction of the Governor in Council. Whenever there may be reason to believe that a Deputy Collector or Deputy Magistrate is disqualified by neglect, incapacity, or corruption for continuance in Office, a report shall be submitted by the Collector or Magistrate through the proper channel for the consideration and orders of the Governor in Council, who shall be competent to suspend such Deputy Collector or Deputy Magistrate and order a further enquiry into his conduct, or to direct his immediate dismissal, as may appear just and proper.

Rules regarding dismissal of Deputy Collectors or Deputy Magistrates.

